



Instructions for Application to Adjust Status From Temporary to Permanent Resident (Under Section 245A of the INA)

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-698
OMB No. 1615-0035
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What Is the Purpose of This Application?

Persons who were granted temporary residence under section 245A of the Immigration and Nationality Act (INA) can use this application to apply through U.S. Citizenship and Immigration Services (USCIS) to adjust to lawful permanent resident status. Individuals apply under section 245A of the INA, as amended by the Immigration Reform and Control Act of 1986, and section 902 of the U.S. Department of State Authorization Bill of 1987.

Who May File Form I-698?

To be eligible for lawful permanent residence under section 245A of the INA, you must meet all of the following requirements.

1. Apply for adjustment during the 2-year period beginning with the 19th month after the date you were granted temporary resident status.
2. Reside continuously in the United States since becoming a temporary resident alien (no single absence from the United States exceeded 30 days, or the total of all absences has not exceeded 90 days).

If you are absent from the United States for more than 30 days in a single absence or for more than a total of 90 days for all occurrences, during the period for which continuous residence is required for adjustment to lawful permanent residence, you will break the continuity of your residence unless you can establish to the satisfaction of USCIS that you did not, in fact, abandon your residence in the United States during that period.

3. Establish admissibility under section 212(a) of the INA. In determining the admissibility of an applicant, the provisions of sections 212(a)(6)(A) and 212(a)(7) of the INA will not apply to an applicant for adjustment of status as a temporary resident or lawful permanent resident under section 245A of the INA.

The Secretary of Homeland Security (Secretary) may not waive the following grounds of inadmissibility:

- A. Section 212(a)(2)(A)(i)(I) (crimes involving moral turpitude);
- B. Section 212(a)(2)(A)(i)(II) (crimes involving controlled substances, except for a single offense of simple possession of 30 grams or less of marijuana);
- C. Section 212(a)(2)(B) (multiple criminal convictions);
- D. Section 212(a)(2)(C) (controlled substance traffickers);
- E. Section 212(a)(3) (security and related grounds); and
- F. Section 212(a)(4) (public charge), **except** for an alien who is or was an aged, blind, or disabled individual (as defined in section 1614(a)(1) of the Social Security Act). An alien is not ineligible for adjustment of status due to inadmissibility under section 212(a)(4) if the alien demonstrates a history of employment in the United States showing self-support without receipt of public assistance. Special adjudication standards regarding public charge contained in any settlement agreements apply.

The Secretary may waive all other grounds of inadmissibility. In order to seek a waiver, you must submit Form I-690, Application for Waiver of Grounds of Inadmissibility Under Sections 245A or 210 of the INA.

4. Were **NOT** convicted of any felony or three or more misdemeanors committed in the United States.

5. Demonstrate that you:

- A.** Meet the requirements of section 312 of the INA (relating to a minimal understanding of ordinary English and a knowledge and understanding of the history and Government of the United States); or
- B.** Are satisfactorily pursuing a course of study recognized by the Secretary to achieve understanding of English and knowledge and understanding of the history and Government of the United States. Contact your local USCIS Office for more information about available courses.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your application, you must submit all evidence and supporting documents listed in these Instructions.

Biometrics Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

- 1.** You provided or authorized all information in the application;
- 2.** You reviewed and understood all of the information contained in, and submitted with, your application; and
- 3.** All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your application.

Name Changes. If your name has changed since you were issued your Employment Authorization Document (Form I-766), you must submit a certified copy of the court decree or marriage certificate, as appropriate. A married person may file his or her application under either a maiden or current married name.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that he or she is competent to translate from the foreign language into English. The certification must also include the translator's signature, printed name, the signature date, and the translator's contact information.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-698

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, use the space provided in **Part 7. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have?" or "How many times have you departed the United States?"), type or print "None" unless otherwise directed.
4. **Part 2. Biographic Information.** Provide the biographic information requested in **Part 2., Item Numbers 1. - 6.** Providing this information as part of your application may reduce the time you spend at your USCIS ASC appointment as described in the Biometric Services Appointment section of these Instructions.

Item Numbers 1. - 2. Ethnicity and Race. Select the boxes that best describe your race and ethnicity.

Categories and Definitions for Ethnicity and Race

- A. Hispanic or Latino.** A person of Cuban, Mexican, Puerto Rican, South or Central American, or other Spanish culture or origin, regardless of race. (**NOTE:** This category is only included under **Ethnicity** in **Item Number 1.**)
- B. American Indian or Alaska Native.** A person having origins in any of the original peoples of North and South America (including Central America), and who maintains tribal affiliation or community attachment.
- C. Asian.** A person having origins in any of the original peoples of the Far East, Southeast Asia, or the Indian subcontinent including, for example, Cambodia, China, India, Japan, Korea, Malaysia, Pakistan, the Philippine Islands, Thailand, and Vietnam.
- D. Black or African American.** A person having origins in any of the black racial groups of Africa.
- E. Native Hawaiian or Other Pacific Islander.** A person having origins in any of the original peoples of Hawaii, Guam, Samoa, or other Pacific Islands.
- F. White.** A person having origins in any of the original peoples of Europe, the Middle East, or North Africa.

Item Number 3. Height. Select the values that best match your height in feet and inches. For example, if you are five feet and nine inches, select “5” for feet and “09” for inches. Do not enter your height in meters or centimeters.

Item Number 4. Weight. Enter your weight in pounds. If you do not know your weight or need to enter a weight under 30 pounds or over 699 pounds, enter “000.” Do not enter your weight in kilograms.

Item Number 5. Eye Color. Select the box that best describes the color of your eyes.

Item Number 6. Hair Color. Select the box that best describes the color of your hair.

- 5. Part 4. Applicant’s Contact Information, Certification, and Signature.** You must sign and date your application and, if applicable, provide your daytime telephone number, mobile telephone number, and email address. The signature of a parent or legal guardian, if applicable, is acceptable. A stamped or typewritten name in place of a signature is not acceptable.
- 6. Part 5. Interpreter’s Contact Information, Certification, and Signature.** If you used anyone as an interpreter to read the Instructions and questions on this application to you in a language in which you are fluent, the interpreter must fill out this section and sign and date the application.
- 7. Part 6. Contact Information, Declaration, and Signature of the Person Preparing this Application, if Other Than the Applicant.** The person who completed your application, if other than the applicant, must sign this section. If the same individual acted as your interpreter and your preparer, then that person should complete both **Part 5.** and **Part 6.** A stamped or typewritten name in place of a signature is not acceptable.
- 8. Part 7. Additional Information.** If you need extra space to provide any additional information within this application, use the space provided in **Part 7. Additional Information.** If you need more space than what is provided in **Part 7.**, you may make copies of **Part 7.** to complete and file with your application, or attach a separate sheet of paper. Type or print your name and A-Number (if any) at the top of each sheet; indicate the **Page Number, Part Number,** and **Item Number** to which your answer refers; and sign and date each sheet.

We recommend that you review your copy of your completed application before you go to your biometric services appointment at a USCIS ASC. At your appointment, USCIS will allow you to complete the application process only if you are able to confirm, under penalty of perjury, that all of the information in your application is complete, true, and correct. If you are not able to make that attestation in good faith at that time, we will require you to return for another appointment.

Photographs

You **must** submit two identical color passport-style photographs of yourself taken recently. The photos must have a white to off-white background, be printed on thin paper with a glossy finish, and be unmounted and unretouched.

The photos must be 2 by 2 inches with a full face, frontal view. Head height should measure 1 to 1 3/8 inches from the top of your hair to the bottom of your chin, and eye height should measure between 1 1/8 to 1 3/8 inches from the top of your eyes to the bottom of the photo. Your head must be bare unless you are wearing headwear as required by your religious denomination. Use a pencil or felt pen to lightly print your name and A-Number (if any) on the back of the photos.

Where To File?

Please see our website at www.uscis.gov/I-698 for the most current information about where to file this application.

Address Changes

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

If your Form I-698 is not signed or accompanied by the correct fees, USCIS will reject it with a notice that your Form I-698 is deficient. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form. You may correct the deficiency and resubmit your Form I-698. An application is not considered properly filed until accepted by USCIS.

Initial Processing. Once USCIS accepts your application, we will check it for completeness. If you do not properly complete this application, you will not establish a basis for your eligibility and we may reject or deny your application.

Requests for More Information. USCIS may request that you provide more information or evidence to support your application. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your application. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form I-698 involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

USCIS Forms and Information

To ensure you are using the latest version of this application, [visit www.uscis.gov](http://www.uscis.gov).

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-698, we will deny your application and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

USCIS Compliance Review and Monitoring

By signing this application, you have stated under penalty of perjury (28 U.S.C. section 1746) that all information and documentation submitted with this application are complete, true, and correct. You also authorize the release of any information from your records that USCIS may need to determine your eligibility for the immigration benefit you are seeking and consent to USCIS verifying such information.

The Department of Homeland Security (DHS) has the authority to verify any information you submit to establish eligibility for the immigration benefit you are seeking at any time. Our legal authority to verify this information is in 8 U.S.C. sections 1103, 1155, and 1184, and 8 CFR parts 103, 204, 205, and 214. To ensure compliance with applicable laws and authorities, we may verify information before or after your case is decided.

Agency verification methods may include, but are not limited to: reviewing public records and information; contacting through written correspondence; using the internet, fax, other electronic transmission, or telephone; making unannounced physical site inspections of residences and locations of employment; and interviewing people. USCIS will use the information we obtain to assess your compliance with the laws and to determine your eligibility for an immigration benefit.

Subject to the restrictions under 8 CFR 103.2(b)(16), USCIS will provide you with an opportunity to address any adverse or derogatory information that may result from a compliance review, verification, or site visit before a decision is made on your request. For a visit after your request is approved, USCIS will provide you with an opportunity to address any adverse or derogatory information which may result in revocation or termination of an approval.

DHS Privacy Notice

AUTHORITIES: The information requested on this application, and the associated evidence, is collected pursuant to the Immigration and Nationality Act (INA) Section 245A and 8 CFR 245a.3(d)(1).

PURPOSE: The primary purpose for providing the requested information on this application is to determine if you have established eligibility to adjust to permanent resident status. DHS uses the information you provide to grant or deny the immigration benefit you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number, and any requested evidence, may delay a final decision or result in denial of your application.

ROUTINE USES: DHS may share the information you provide on this application and any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS/ICE/CBP-001 Alien File, Index, and National File Tracking System, DHS/USCIS-007 - Benefits Information System, and DHS/USCIS-018 Immigration Biometric and Background Check] and published privacy impact assessment [DHS/USCIS/PIA-016(a) Computer Linked Application Information Management System and Associated Systems] which you can find at www.dhs.gov/privacy. DHS may also share this information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

USCIS may not conduct or sponsor an information collection, and you are not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at .927 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the application, preparing statements, attaching necessary documentation, and submitting the application. The collection of biometrics is estimated to require 1 hour and 10 minutes. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140, Camp Springs, MD 20588-0009; OMB No. 1615-0035. **Do not mail your completed Form I-698 to this address.**